

24STCV13689 24STCV13689

County: los-angeles

Division: Civil Law and Motion

Department: 407

Hearing date: 2026-07-21

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Case Number: 24STCV13689 Hearing Date: July 21, 2026 Dept: 407

Tentative Ruling

Judge Brock T. Hammond, Department 407

HEARING DATE: July

21, 2026 TRIAL

DATE: November 15, 2027

CASE: Samantha Brustin v. Petrol Advertising, Inc., et al.

CASE NO.: 24STCV13689

PLAINTIFF SAMANTHA BRUSTIN'S AMENDED

MOTION TO QUASH SUBPOENA TO BRIAN PENROD, L.C.S.W., AND FOR MONETARY SANCTIONS

IN THE AMOUNT OF \$6,786.42, AND FOR PROTECTIVE ORDER

MOVING PARTY: Plaintiff

Samantha Brustin

RESPONDING PARTY: Defendants Petrol

Advertising, Inc., et al.

Plaintiff

Samantha Brustin ("Brustin" or "Plaintiff") brings this employment action against her former employers, defendants Petrol Advertising, Inc. ("Petrol") and Enad Global 7 AB (PUBL) ("EG7") (collectively, "Defendants"). Brustin worked for Defendants from November 2022 until she was terminated in April 2024.

Brustin alleges that, during her employment, she was subjected to sexual

harassment, a hostile work environment, and retaliation for taking CFRA leave. Plaintiff was terminated a month after she returned from medical leave.

I. BACKGROUND

On June 3, 2024, Plaintiff filed a Complaint against Defendants for (1) Whistleblower Retaliation, (2) Sex, Gender, Disability, and Medical Condition Harassment in Violation of the FEHA, (3) FEHA Retaliation, (4) Sex, Gender, Disability, and Medical Condition Discrimination, (5) Associational Disability Discrimination, (6) Failure to Take All Reasonable Steps Necessary to Prevent Discrimination, (7) Violation of CFRA Rights and CRA Retaliation, (8) Wrongful Termination in Violation of Public Policy, (9) Violations of the Equal Pay Act, and (10) Declaratory and Injunctive Relief. As a result of Defendants' conduct, Plaintiff claims she has suffered a quickened heartbeat, insomnia, headaches, suffering, anguish, fright, fear, despair, nervousness, grief, anxiety, panic attacks, worry, shock, humiliation, helplessness, shame, emotional distress, stress, loss of enjoyment of life, and mental suffering.

On January 30, 2026, Petrol served on Plaintiff's counsel's office via mail notice of consumer in advance of subpoenas duces tecum ("SDT") to Brian Penrod, LCSW ("Penrod"). Plaintiff received mental health-related treatment Penrod. Plaintiff took issue with the subpoena and thereafter met and conferred with Defendants regarding the scope of the subpoenas, among other things. The parties did not resolve the issues.

On March 19, 2026, Petrol served a second SDT (hereafter, the "Second SDT") to Penrod. Meet and confer efforts did not resolve the issues.

On April 15, 2026, Plaintiff filed this motion to quash the Second SDT and for a protective order. Plaintiff seeks sanctions against Defendants and their counsel of record.

On June 24, 2026, Plaintiff filed an amended motion to quash.

On July 8, 2026, Petrol filed an opposition. Petrol

request sanctions against Plaintiff.

On July 14,
2026, Plaintiff filed a reply.

II. LEGAL STANDARD

If a subpoena requires the attendance of a witness or the production of books, documents, electronically stored information, or other things before a court, or at the trial of an issue therein, or at the taking of a deposition, the court, upon motion reasonably made by any person described in subdivision (b), or upon the court's own motion after giving counsel notice and an opportunity to be heard, may make an order quashing the subpoena entirely, modifying it, or directing compliance with it upon those terms or conditions as the court shall declare, including protective orders. In addition, the court may make any other order as may be appropriate to protect the person from unreasonable or oppressive demands such as unreasonable violations of the right of privacy.¿ (Code Civ. Proc., § 1987.1.)¿

III. DISCUSSION

A. Judicial Notice

Petrol

requests judicial notice of the court's June 12, 2026 order. The unopposed request is GRANTED. (Evid. Code, § 452(d)(1).)

B. Analysis

Plaintiff seeks an order quashing the Second SDT on three grounds: (1) it is overbroad; (2) violates the California Confidentiality of Medical Information Act and various privileges, and (3) violates Plaintiff's right to privacy and third-party privacy.

Petrol argues the motion is moot and barred by the collateral estoppel doctrine because the court already ruled on Plaintiff's motion to quash the SDT to Penrod.

Petrol is mistaken. The court ruled only on the motion to quash the first SDT to Penrod. (See Minute Order, 06/12/26.) The motion is not

moot.

Notwithstanding the propriety of the motion, Plaintiff's arguments are largely unmeritorious. The court considered Plaintiff's arguments in connection to Plaintiff's prior motions to quash subpoenas and rejected Plaintiff's privacy challenges. And, in pertinent part, the court found the first SDT to Penrod, among others, were marginally overbroad. Consistent with the court's June 12, 2026 order, the court will modify the Second SDT as follows: "...which involve emotional distress arising from or related to Plaintiff's employment with Defendants, including but not limited to any feeling of suffering, anguish, frights, fear, despair, nervousness, grief, anxiety, panic attacks, worry, shock, humiliation, helplessness, shame, emotional distress, stress, loss of enjoyment of life and mental suffering, from October 1, 2022." The court finds the Second SDT is not overbroad as to time.

Monetary Sanctions

The court declines to award monetary sanctions. Although Petrol failed to respond to Plaintiff's meet and confer efforts, Petrol proceeded under the mistaken view that this motion was mooted by the court's June 12, 2025 ruling.

IV. CONCLUSION

The motions to quash the Second Penrod SDT is GRANTED IN PART. The Second Penrod SDT is modified as indicated herein.

The requests for sanctions are DENIED.

Plaintiff is ordered to give notice, unless waived.

Dated: July 21, 2026

Brock T. Hammond

Judge of the Superior Court